

Shakeela Begum v. State of U.P.

Allahabad High Court · Division Bench · 16 December 2020 · Writ-C No. 21712 of 2020 · Writ-C No. 21712 of 2020 ·
Writ dismissed; relegated to Section 127 appeal.

HEADNOTE

Writ to quash a PVVNL demand notice, restrain coercive recovery, and direct installation of a smart meter is dismissed. After the licensee supplied a final assessment dated 12 February 2020, the Court held that an appeal under Section 127 was available; the petitioner did not dispute that remedy.

FACTUAL SUMMARY

Shakeela Begum challenged a 20 September 2019 demand of the Executive Engineer, PVVNL, Meerut, seeking to quash the notice, restrain coercive recovery, and direct installation of a smart meter as per a 5 August 2019 letter. She alleged recovery without supply of the provisional assessment. The licensee said the premises were inspected on 18 July 2019, a provisional assessment issued, objections filed on 28 January 2020, and a final assessment of 12 February 2020 supplied in court.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ-relegation-after-final-assessment

HOLDING

Once a final assessment has been passed and supplied, and the consumer does not dispute the availability of an appeal under Section 127, a writ seeking to quash the demand and restrain recovery is dismissed on the ground of alternative remedy. ¶ 1

FLAG Counsel and the Court described the remedy as an appeal under Section 127 of the Electricity Supply Code; Section 127 is of the Electricity Act, 2003.

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ Writ against the demand and coercive recovery dismissed because an appeal under Section 127 was available and was not disputed. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal After the final assessment dated 12 February 2020 was supplied in court, the petitioner was relegated to the Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND AND FINAL ASSESSMENT

Dismissed solely on alternative remedy; assessment and recovery not examined. ¶ 1

NOT DECIDED — MANDAMUS TO INSTALL A SMART METER

Prayer for installation pursuant to the 5 August 2019 letter not decided. ¶ 1